

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 51603 of 2023

Most. Shahida Begum
.... Accused-Petitioner

-Versus-
The State

.... Opposite Party
Mr. Md. Shariful Hasan, Advocate
.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G. with
Ms. Farhana Afroze Runa, A.A.G.
Mr. Md. Abdul Aziz Masud, A.A.G.
Mr. Md. Shamim Khan, A.A.G.
.... For the State.

Heard and Judgment on 17.01.2024

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the impugned proceedings of Sessions Case No.05 of 2014 arising out of Palong

Police station Case No.01 dated 05.08.2011 corresponding to G.R. Case No.146 of 2011 under Sections 364/302/201/34 of the Penal Code, 1860 now pending in the Court of learned Additional Sessions Judge, Shariatpur should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the dead body of victim Anju member was found floating in the Arial Kha river on 04.08.2011. The name of the petitioner was not mentioned as an accused in the FIR. But she made a confession under Section 164 of the Code of Criminal Procedure and her name was incorporated in the charge sheet.

No one appears on behalf of the petitioner when the matter was taken up for hearing although the matter was fixed for hearing today.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State submits that in this case 7 prosecution witnesses have already been examined and cross examined and the case is fixed for further examination of other witnesses. At the stage this proceeding under Sections 302/34 of the Penal Code cannot be quashed under Section 561 of the Code of Criminal Procedure. In support of above submission the learned Deputy Attorney General has referred the case law reported in 13 MLR (AD) 2008 Page No.103.

We have considered the submission of the learned Deputy Attorney General for the State and carefully examined all materials on record.

It turns out from the record that the name of the petitioner did not find a place in the FIR. She has given a statement under Section 164 of the Code of Criminal Procedure but the same cannot be designated as a confession. However, on conclusion of investigation charge sheet was submitted and the name of the petitioner was incorporated in the above charge sheet as an accused. We further find from the record that 7 prosecution witnesses have already been examined and cross examined and there is a likelihood that the trial of the case will be concluded very soon. In the above cited case of 13 MLR (AD) 2008 the Appellate Division has laid down that a petition under Section 561A of the Code of Criminal Procedure for quashment of the proceedings at the stage when trial already begun and prosecution witnesses are examined should not be permitted.

We find that the facts and circumstances of the above reported case law is similar to that of the case in our hand and above case law applies to this case.

Since 7 prosecution witnesses were examined before the petitioner moved to this Court with this application under Section 561A of the Code of Criminal Procedure we find substance in the above submissions of the learned Deputy Attorney General for the State.

On consideration of above materials on record we are unable to find any substance in this petition and the Rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

*MD. MASUDUR RAHMAN
BENCH OFFICER*